by the principal as the sole criterion to be applied.

(b) At least in one situation it is possible to be specified: (1) Where the sawmill or concentration yard to which the products are delivered owns the land or the appropriation rights to the timber or other forestry products, (2) the crew boss has no very substantial investment in tools or machinery used; and (3) the crew does not transfer its relationship as a unit from one sawmill or concentration yard to another, the crew boss and the employees working under him will be considered employees of the sawmill or concentration yard. Other situations, where one or more of these three factors is not present, will be considered as they arise on the basis of the criteria mentioned in paragraph (a) of this section. Where all of these three criteria are present, however, it will make no difference if the crew boss receives the entire compensation for the production from the sawmill or concentration yard and distributes it in any way he chooses to the crew members. Similarly, it will make no difference if the hiring, firing and supervising of the crew members is left in the hands of the crew boss.

§ 788.17 Employees employed in both exempt and nonexempt work.

The exemption for an employee employed in exempt work will be defeated in any workweek in which he performs a substantial amount of nonexempt work. For enforcement purposes nonexempt work will be considered substantial in amount if more than 20 percent of the time worked by the employee in a given workweek is devoted to such work. Where the two types of work cannot be segregated, however, so as to permit separate measurement of the time spent in each, the employee will not be exempt.

Signed at Washington, D.C., this 6th day of August 1962.

CLARENCE T. LUNDQUIST,
Administrator.

[F.R. Doc. 62-8050; Filed, Aug. 10, 1962; 8:50 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2741]

ALASKA

Revoking in Whole or in Part Certain Withdrawals for Indian School Purposes; Withdrawing Lands at Egegik for Indian School Purposes

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in the act of May 31, 1938 (52 Stat. 593; 48 U.S.C. 353a), it is ordered as follows:

1. Subject to valid existing rights, the following described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws, and reserved under the jurisdiction of the Bureau of Indian Affairs for school purposes:

[Anchorage 055292]

Egegik

Beginning at Corner 4, U.S. Survey 485, thence:

West, 400 feet;
South, 375 feet;
East, 50 feet;
South, 175 feet;
East, 350 feet to a point on line 3–4 of U.S. Survey 485;
North, 550 feet along line 3–4 of U.S. Survey 485 to the point of beginning.

Containing approximately 4.85 acres.

2. Executive Order No. 5289 of March 4, 1930, the departmental order of January 24, 1938, and Public Land Order No. 2391 of May 18, 1961, which withdrew lands for Indian school purposes, are hereby revoked so far as they affect the following described lands, as indicated:

a. Executive Order No. 5289:

[Anchorage 055022]

Kanatak

U.S. Survey 2029

Containing 0.83 acre.

b. Order of January 24, 1938:

[Anchorage 055021]

Nondalton Area

A tract of land not exceeding 40 acres located at approximately 154°50′ West Longitude and 60°00′ North Latitude.

Newhalen Area

A tract of land not exceeding 40 acres located at approximately 155°02′ West Longitude and 59°45′ North Latitude.

c. Public Land Order No. 2391:

[Anchorage 055292]

Egegik

Beginning at Corner 4, U.S. Survey 485; thence

West, 475 feet;
South, 550 feet;
East, 475 feet to a point on line 3–4, U.S. Survey 485;
North, 550 feet along line 3–4, U.S. Survey 485 to the point of beginning.

Containing 6 acres.

3. Subject to any existing valid rights, and the requirements of applicable law, the lands described in paragraph 2a of this order are hereby opened to settlement, and to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public land laws and applicable regulations may be presented to the Manager mentioned below beginning on the date of this order. Applications by persons having prior existing valid settlement rights, preference rights conferred by existing law, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support thereof. All other applications will be subject to the applications and claims mentioned in this paragraph.

b. All valid applications and selections under the nonmineral public land laws, other than those coming under paragraph (a) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a.m. on September 12, 1962, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

4. The lands will be open to settlement under the homestead and Alaska homesite laws, and to location under the U.S. mining laws beginning at 10:00 a.m. on September 12, 1962.

5. The State of Alaska has waived its preference rights granted under the act of July 28, 1956 (70 Stat. 709; 48 U.S.C. 46–3b) and section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339).

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

AUGUST 7, 1962.

[F.R. Doc. 62-8028; Filed, Aug. 10, 1962; 8:46 a.m.]

[Public Land Order 2742]

[88115]

UTAH

Vacation of Power Withdrawal; Opening Lands Under Section 24 of Federal Power Act

1. In an order issued August 21, 1961, docketed as DA–145–Utah, the Federal Power Commission (a) vacated the withdrawal created pursuant to the filing of the application for a preliminary permit for proposed Project No. 290, for the following described lands;

SALT LAKE MERIDIAN

T. 16 S., R. 7 E.,
Sec. 26, SW¼NW¼ and E½SW¼.

(b) determined that the value of the following described lands would not be injured or destroyed for purposes of power development by location, entry, or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U.S.C. 818), as amended;

SALT LAKE MERIDIAN

T. 16 S., R. 7 E.,
Sec. 26, SW¼NW¼ and E½SW¼.

and (c) that the value of the following described lands would not be injured or destroyed for purposes of power development by location, entry or selection under the public land laws, subject to the provisions of section 24 of the Federal Power Act, supra, and subject to the condition that in the event the said lands are required for power purposes, any improvements or structures placed thereon which shall be found to interfere with such development shall be removed or relocated as may be necessary to eliminate intereference with power development at no cost to the United States, its permittees or licensees: